



March 4, 2026

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VIA EMAIL

Ms. Amy Strauss
Acting Director
Bureau of Trade Analysis
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

RE: **URGENT** – Request for Special Permission on behalf of
Hapag-Lloyd AG, Org No. 005980

Dear Ms. Strauss:

Pursuant to 46 C.F.R. §520.14, Hapag-Lloyd AG, Org. No. 005980 (“Hapag-Lloyd”) respectfully requests special permission to deviate from 46 C.F.R. §520.8(a) and to implement a War Risk Surcharge (“WRS”) on less than thirty (30) days’ notice. The reasons for this request are set forth below.

As a global carrier, Hapag-Lloyd operates services between the U.S. and various locations around the world, including countries bordering on the Persian Gulf. The services between the U.S. and countries bordering on the Persian Gulf must transit the Strait of Hormuz. These services also call other countries in the region as well.

As the Commission is aware, armed hostilities have broken out in the Middle East. Iran has effectively closed the Strait of Hormuz to vessel traffic by threatening to attack any ship that attempts to pass through the Strait. See <https://www.aljazeera.com/news/2026/3/2/iran-says-will-attack-any-ship-trying-to-pass-through-strait-of-hormuz>. Several of Hapag-Lloyd’s vessels are trapped in the Persian Gulf, unable to leave due to this threat. See <https://shippingwatch.com/carriers/Container/article19071044.ece>. Hapag-Lloyd, like several other major carriers, has been forced to suspend vessel transits through the Strait.

This disruption in service will have significant consequences, all of which involve increased costs for Hapag-Lloyd. Among these consequences are: (i) war risk/insurance/security (higher war-risk premiums, tighter P&I/coverage terms, additional security/compliance measures); (ii) the increased cost of delivering cargo already in Hapag-

Lloyd's possession via alternate means (such as over land or via feeder vessel); (iii) the costs associated with idled/delayed vessels (charter hire, crew expenses, anchorage/port fees, and provisions/maintenance, all of which remain payable with respect to vessels that may not be generating revenue); (iv) increased equipment costs (containers stuck; empty repositioning, leasing needs, demurrage/detention complexity and claims); (v) port congestion/schedule recovery (anchorage/berth delays, extra port costs, the additional cost of speeding up vessels to regain schedule/intervals, the cost of adding/omitting vessel calls); (vi) higher bunker prices; and (vii) increased overhead costs in dealing with the situation generally (e.g., emergency/risk bonuses for crew and workers, rebooking/rollovers, contract disputes, customer service exceptions).

In an effort to recover these costs, Hapag-Lloyd has published an WRS of U.S.\$1500 per TEU for dry container and U.S.\$3,500 per reefer container/special equipment in Rule E01.15.1 of its tariff RURE-002 (copy attached). The WRS will apply to cargo moving between the United States on the one hand and United Arab Emirates, Saudi Arabia, Kuwait, Qatar, Bahrain, Iraq, Oman and Pakistan on the other hand which cargo is received by Hapag-Lloyd after the effective date of the WRS. Presently, the WRS is scheduled to become effective April 1, 2026. However, unless the effective date of this new surcharge is advanced, Hapag-Lloyd will be unable to begin recovering the increased costs it is presently experiencing for almost a full month.

Accordingly, Hapag-Lloyd respectfully requests that it be granted special permission to advance the effective date of the WRS to the earliest possible date.

The \$394 filing fee for this request has been paid electronically. The Pay.gov tracking ID is 2806MD87 and the Agency Tracking ID is 77316655739.

Thank you in advance for your favorable consideration of this request. Should you have any questions or require any further information, please do not hesitate to contact the undersigned.

Sincerely,

COZEN O'CONNOR



By: Wayne Rohde

WRR

Enclosure